

**PETITION FOR EXPUNGEMENT
FILED IN A CIRCUIT COURT –
ACQUITTAL/DISMISSAL**

Commonwealth of Virginia VA. CODE § 19.2-392.2(A)

Case No.

..... Circuit Court
CITY OR COUNTY

.....
STREET ADDRESS OF COURT

..... Maria-Alejandra O'Shaughnessy-Whitfield v. Commonwealth of Virginia
NAME OF PETITIONER

1. This petition to expunge the police and court records, including electronic records, relating to the charge(s) detailed in Part 2 (below) is based on § 19.2-392.2(A), as the petitioner was charged with the commission of a crime or offense AND (CHECK ONE)
- ☐ has been acquitted of the charge.
- ☐ a nolle prosequi of the charge has been taken or the charge has been otherwise dismissed, including dismissal by accord and satisfaction pursuant to Virginia Code § 19.2-151 or an original charge that was reduced or a charge that is dismissed after a plea or stipulation of the facts that would justify a finding of guilt pursuant to § 19.2-298.02.

2. I further state that:

Petitioner's date of birth is: 1968-12-31

Petitioner's full name at the time of arrest:

Specific charge(s) to be expunged:

If matter was heard on appeal from General District Court, list applicable General District Court case number(s):

☐ A copy of the warrant or indictment is attached to this petition. Underlying Case No.(s)

Date of arrest: Name of arresting agency:

☐ A copy of the warrant or indictment ☐ date of arrest or name of arresting agency is not reasonably available because (state reason this information is not available):

Date(s) of final disposition of charge(s): Court disposing of charge(s):

The continued existence and possible dissemination of information relating to the arrest of the petitioner causes or may cause circumstances which constitute a manifest injustice to the petitioner. For this reason, I request that the police and court records, including electronic records, relating to the charge(s) be expunged and that a copy of any order of expungement be forwarded to the Department of State Police pursuant to § 19.2-392.2(K).

.....
DATE

.....
SIGNATURE OF ☒ PETITIONER ☐ ATTORNEY FOR PETITIONER

.....
Maria-Alejandra O'Shaughnessy-Whitfield

.....
PRINT NAME

.....
1188 Upper Notch Crossing Road, Apartment 14B, Virginia Beach, Virginia 23456-2214

.....
ADDRESS OF ☒ PETITIONER ☐ ATTORNEY FOR PETITIONER

.....
(757) 555-0199 ext. 4417

.....
TELEPHONE NUMBER OF ☒ PETITIONER ☐ ATTORNEY FOR PETITIONER

.....
maria.alejandra.oshaughnessy.whitfield@longmailexample.org

.....
EMAIL ADDRESS OF ☒ PETITIONER ☐ ATTORNEY FOR PETITIONER

.....
VSB NUMBER OF ATTORNEY FOR PETITIONER (IF APPLICABLE)

☐ I certify that I provided the petitioner a certified copy of this petition. Hearing date and time:

.....
DATE

.....
CLERK

Checklist for petitioner:

- [] File completed PETITION FOR EXPUNGEMENT FILED IN A CIRCUIT COURT – ACQUITTAL/DISMISSAL in the circuit court of the county or city in which the charge(s) was disposed of and, if required by the clerk of the court, a completed COVER SHEET FOR FILING CIVIL ACTIONS, circuit court form CC-1416.
- [] Request that the Central Criminal Records Exchange electronically forward a copy of your Virginia criminal history record to the circuit court where the petition for expungement was filed.
- [] Have a copy of this petition served on the Commonwealth’s Attorney in the county or city in which the PETITION FOR EXPUNGEMENT FILED IN A CIRCUIT COURT – ACQUITTAL/DISMISSAL is filed.

COPY FOR THE ATTORNEY FOR THE COMMONWEALTH, AND REQUEST FOR THE
COMMONWEALTH'S POSITION

Petitioner: Maria-Alejandra O'Shaughnessy-Whitfield

Petition: CC-1473 - Petition for Expungement Filed in a Circuit Court - Acquittal/Dismissal

Statutory route: Va. Code Sec. 19.2-392.2(A)

CIRCUIT COURT (copy it from the petition's caption once you have written it there)

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To: the Attorney for the Commonwealth for the county or city where this petition is filed.

Enclosed is a copy of the petition for expungement filed by Maria-Alejandra O'Shaughnessy-Whitfield. The petition's own checklist (CC-1473, page 2) requires that a copy of the petition be served on the Commonwealth's Attorney in the county or city in which the petition is filed. This is that copy.

The petitioner asks the Attorney for the Commonwealth to state, in writing and to the court, whether the Commonwealth objects to the expungement sought by the enclosed petition. A statement that the Commonwealth does not object is not required for the petition to proceed, and nothing in this request asks the Attorney for the Commonwealth to agree to anything.

The attorney for the Commonwealth may file an objection or answer, or give written notice of no objection, within twenty-one days after service. That is twenty-one days on an expungement, not the thirty days that applies to a sealing petition.

The petition itself does not say how service must be made, and neither does this page. Ask the clerk of the circuit court where you file how the copy must be served, and use that method. The petitioner is not represented by counsel; correspondence about this petition should go to the address printed on the petition's signature block.

NAME AND MAILING ADDRESS OF THE ATTORNEY FOR THE COMMONWEALTH
(the petitioner writes it here before service; the circuit court clerk can provide it)

.....

DATE OF SERVICE OF THE COPY

SIGNATURE OF PETITIONER

This page is not proof of service and does not say that anything has been served. It is completed and signed by the petitioner when the copy actually goes out, in the manner the clerk directs.

Route: obligation:track-only:VA:va_exp_nonconviction

REQUEST TO THE CENTRAL CRIMINAL RECORDS EXCHANGE TO FORWARD A CRIMINAL HISTORY RECORD

Petitioner: Maria-Alejandra O'Shaughnessy-Whitfield

Petition: CC-1473 - Petition for Expungement Filed in a Circuit Court - Acquittal/Dismissal

Statutory route: Va. Code Sec. 19.2-392.2(A)

CIRCUIT COURT (copy it from the petition's caption once you have written it there)

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To: the Central Criminal Records Exchange, Virginia Department of State Police.

The petition's own checklist (CC-1473, page 2) requires the petitioner to request that the Central Criminal Records Exchange electronically forward a copy of the petitioner's Virginia criminal history record to the circuit court where the petition for expungement was filed. This page is that request.

Please forward the Virginia criminal history record of Maria-Alejandra O'Shaughnessy-Whitfield, date of birth 1968-12-31, to the circuit court named above, for the expungement petition identified above.

The form on which the Department of State Police accepts this request, the identification it requires, and any charge for it are not stated on this page, because the petition does not establish them. The Department of State Police publishes the current procedure; ask the circuit court clerk if you cannot find it.

DATE OF THIS REQUEST

SIGNATURE OF PETITIONER

File the petition first. The checklist words this request around the court where the petition WAS filed, so it is made after filing, not before.

Route: obligation:track-only:VA:va_exp_nonconviction

RECORDS CHECKLIST FOR THIS PETITION

Petitioner: Maria-Alejandra O'Shaughnessy-Whitfield

Petition: CC-1473 - Petition for Expungement Filed in a Circuit Court - Acquittal/Dismissal

Statutory route: Va. Code Sec. 19.2-392.2(A)

CIRCUIT COURT (copy it from the petition's caption once you have written it there)

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The petition asks for facts that live on your own court and arrest records. Gather these before you fill it in, and keep them together with the packet.

RECORDS TO OBTAIN AND CHECK BEFORE FILING

[] The participant's own Virginia criminal history record from the CCRE - required before filing. Obtain from Virginia State Police, Central Criminal Records Exchange. Request your own copy from the CCRE for the fee they charge. This is a different thing from the court's copy: you must separately ask the CCRE to forward a copy electronically to the circuit court as part of the petition. The Norfolk clerk's guidance is that the case is established with the court first and the State Police request comes second, so the sequence matters.

[] The circuit court case file, or the district court record held by that locality's circuit court - required before filing. Obtain from Clerk of the circuit court of the county or city where the case was disposed of. Ask the clerk of the circuit court of the locality where the case was disposed of for the case papers. District court charges are handled by that locality's circuit court, so that is where to ask even for a general district court charge.

[] Copy of the warrant, summons or indictment - conditional before filing. Obtain from Clerk of the court that handled the case. Ask the clerk for a copy of the charging document. If it is not reasonably available, the petition states the reason for the unavailability instead.

[] Check your answer to "How did the case end, and on what date?" against The participant's own Virginia criminal history record from the CCRE, and correct the packet if they disagree.

[] Check your answer to "How did the case end, and on what date?" against The circuit court case file, or the district court record held by that locality's circuit court, and correct the packet if they disagree.

[] Check your answer to "What was the charge, and which Code section was it under?" against Copy of the warrant, summons or indictment, and correct the packet if they disagree.

FACTS TO COMPLETE FROM THOSE RECORDS

[] The specific charge or charges to be expunged, worded exactly as your court record words them.

[] The disposition of each charge: acquitted, nolle prosequi, or otherwise dismissed - the petition makes you check exactly one basis.

[] The date or dates of final disposition, and the court that disposed of the charge or charges.

[] The date of arrest, and the name of the agency that arrested you.

[] Your full name at the time of arrest, as the arrest record states it.

[] A copy of the warrant or indictment, and its underlying case number or numbers - the petition asks whether the copy is attached.

[] If the matter reached circuit court on appeal from a General District Court: the General District Court

case number or numbers.

[] The city or county of the circuit court where you will file, and that court's street address - the clerk's office can confirm both.

[] Circuit court form CC-1416, COVER SHEET FOR FILING CIVIL ACTIONS, completed - the checklist says to include it if the clerk of the court requires it. Ask the clerk.

If a record cannot be found, the petition has boxes for that: they ask you to say why the information is not reasonably available. Say what you tried. Do not guess a date.

Route: obligation:track-only:VA:va_exp_nonconviction

FILING INSTRUCTIONS

Petitioner: Maria-Alejandra O'Shaughnessy-Whitfield

Petition: CC-1473 - Petition for Expungement Filed in a Circuit Court - Acquittal/Dismissal

Statutory route: Va. Code Sec. 19.2-392.2(A)

CIRCUIT COURT (copy it from the petition's caption once you have written it there)

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This packet is prepared for expunging the police and court records of a charge that ended without a conviction, under Va. Code Sec. 19.2-392.2(A).

WHERE THIS GOES

File the petition with the CIRCUIT COURT of the county or city in which the charge was disposed of - the petition's own checklist says so. Write that court's city or county and street address into the petition's caption; the clerk's office can confirm both. If the clerk requires it, include a completed COVER SHEET FOR FILING CIVIL ACTIONS, circuit court form CC-1416.

WHAT YOU DO, IN ORDER

Before completing these steps, obtain your own CCRE record and the court case papers, and check the packet answers against them using the Records Checklist. Your own CCRE copy is separate from the court copy requested after filing.

1. Complete every item this packet's participant instructions list. Each one names the page and the words printed beside the blank.
2. Check exactly one basis box - acquitted, or nolle prosequi / otherwise dismissed - to match how your charge actually ended. Before you tick the second box, read THE DOTSON SCREEN below: it is a hard gate on that box, and it is the one place where ticking it and filing can be the wrong thing to do.
3. Sign and date the petition yourself, and mark nothing in the clerk's certification block at the foot of page 1: that block is the clerk's.
4. File the petition with the circuit court clerk.
5. Ask the Central Criminal Records Exchange to forward your Virginia criminal history record to that court, using the page in this packet headed for that purpose.
6. Have a copy of the petition served on the Attorney for the Commonwealth for that county or city, using the page in this packet headed for that purpose, in the manner the clerk directs.

THE FILING FEE, AND ONE THING THIS PACKET DOES NOT TELL YOU

- The filing fee, and whether it can be waived. No court fees or costs are payable for filing this petition: Va. Code 19.2-392.2(A) provides that a person shall not be required to pay any court fees or costs for filing a petition under that subsection, so there is no filing fee and nothing to waive. The CCRE charges its own fee for the participant's own copy of their record.
- How long you have, and exactly how service must be made. The petition sets no filing deadline and states no service mechanics; neither does this page. Ask the same clerk.

THE DOTSON SCREEN, A HARD GATE ON THE BASIS ELECTION IN PART ONE

Part 1 makes you check one basis: acquitted, or nolle prosequi / otherwise dismissed. "Otherwise dismissed" is read narrowly, and the committed track registry states the gate in these words: "The dismissal followed a stipulation or a judicial finding of facts sufficient for guilt, or was a deferred or first-offender disposition. That is the Dotson screen and it is a hard gate: route to sealing, not expungement." It states the same population again among this route's exclusions: "A charge dismissed after a finding of facts sufficient for guilt, and a deferred or first-offender disposition such as a Sec. 18.2-251 drug dismissal. Under Commonwealth v. Dotson 'otherwise dismissed' is read narrowly and this population routes to sealing instead."

So: if your charge was dismissed after a stipulation or after a judicial finding of facts sufficient for guilt, or under a deferred or first-offender disposition, do not tick that box and do not file this petition. This is the wrong packet for that record, and the relief that population routes to is sealing rather than expungement. If you are not sure which of those your own disposition was, the court record wording decides it, and the paragraph below says who can read it with you.

WHERE SELF-HELP ENDS

The committed track registry records these as the points where self-help ends on this route, in its own words and in its own order. If any of them describes your case, stop before you file:

- The dismissal followed a stipulation or a judicial finding of facts sufficient for guilt, or was a deferred or first-offender disposition. That is the Dotson screen and it is a hard gate: route to sealing, not expungement.
- The attorney for the Commonwealth objects or answers, or the court sets a contested hearing.
- The participant has a prior criminal record and the charge was a felony, so neither the presumption nor an easy stipulation is available.
- Any immigration question.
- Juvenile or federal records.

WHO TO ASK WHEN YOU REACH ONE OF THEM

The clerk of the circuit court where you file answers procedural questions - what to file, how the copy must be served, and what that court requires - and this packet already sends you to that clerk for those. The clerk cannot tell you whether your own charge is eligible, and is not permitted to. Whether the Dotson screen catches your dismissal, whether the presumption is available to you, what to do if the Attorney for the Commonwealth objects or answers or the court sets a contested hearing, and any immigration, juvenile or federal question, are legal questions: only a lawyer licensed to practise in Virginia can answer them, and if you cannot afford one, ask that same clerk's office how to reach a legal-aid office. No lawyer has reviewed your case in preparing this packet.

WHAT THIS PACKET IS NOT

This is a prepared set of an official Virginia circuit court form and companion pages. It is not legal advice, it is not filed for you, and it does not decide whether the court will grant expungement.

Route: obligation:track-only:VA:va_exp_nonconviction